

CHARITABLE REMAINDER TRUST AGREEMENT

CHARITABLE REMAINDER UNITRUST (CRUT)

PARTIES TO THIS AGREEMENT

DONOR/GRANTOR:	Patricia D. Whitfield
TRUSTEE:	National Christian Charitable Foundation, Inc.
INCOME BENEFICIARY:	Patricia D. Whitfield
REMAINDER BENEFICIARY:	Howard University Endowment Fund

THIS CHARITABLE REMAINDER TRUST AGREEMENT (this "Agreement") is made and entered into as of July 1, 2023, by and between Patricia D. Whitfield (hereinafter referred to as the "Donor" or "Grantor"), and National Christian Charitable Foundation, Inc., a Georgia nonprofit corporation exempt from federal income tax under Section 501(c)(3) of the Internal Revenue Code (hereinafter referred to as the "Trustee").

RECITALS

WHEREAS, the Donor desires to establish an irrevocable trust that qualifies as a charitable remainder trust within the meaning of Section 664(d) of the Internal Revenue Code of 1986, as amended (the "Code"), and the regulations promulgated thereunder; and

WHEREAS, the Donor desires to receive (or to have designated beneficiaries receive) annual distributions from the Trust during the trust term, with the remainder interest passing to one or more qualified charitable organizations upon termination of the Trust; and

WHEREAS, the Trustee is willing to accept the trust property and to administer the Trust in accordance with the terms and conditions set forth herein and in compliance with the laws of the State of Virginia;

NOW, THEREFORE, in consideration of the mutual covenants and agreements contained herein, and for other good and valuable consideration, the receipt and sufficiency of which are hereby acknowledged, the parties agree as follows:

ARTICLE I - ESTABLISHMENT OF TRUST

1.1 Creation. The Donor hereby transfers, assigns, and conveys to the Trustee the sum of \$3,750,000 (the "Initial Trust Property") in cash, securities, and/or other property acceptable to the Trustee, to be held, administered, and distributed by the Trustee in accordance with the provisions of this Agreement. The Trust hereby established shall be known as the "Whitfield Charitable Remainder Trust."

1.2 Irrevocability. This Trust is irrevocable. The Donor shall have no right or power, whether alone or in conjunction with others, to alter, amend, revoke, or terminate this Trust or any of the terms of this Agreement, except as expressly provided herein.

1.3 Tax-Exempt Status. This Trust is intended to qualify as a Charitable Remainder Unitrust (CRUT) under Section 664(d) of the Code. All provisions of this Agreement shall be construed in a manner consistent with this intent, and any provision that would disqualify the Trust shall be void.

1.4 Additional Contributions. The Donor may, from time to time, transfer additional property to the Trust, subject to the written acceptance of the Trustee. Any additional property so transferred shall be administered in accordance with the terms of this Agreement and shall increase the value of the Trust corpus for purposes of calculating subsequent distributions.

ARTICLE II - DISTRIBUTIONS TO INCOME BENEFICIARY

2.1 Unitrust Amount. In each taxable year of the Trust during the Trust term, the Trustee shall pay to Patricia D. Whitfield (the "Income Beneficiary") a unitrust amount equal to 4.8% of the net fair market value of the Trust assets as determined on the first day of each taxable year of the Trust (the "Valuation Date"). Based on the initial funding of \$3,750,000, the estimated first-year distribution shall be approximately \$180,000, subject to adjustment based on the actual net fair market value of Trust assets on the applicable Valuation Date.

2.2 Payment Schedule. The unitrust amount shall be paid in equal quarterly installments on or before the last day of each calendar quarter. Any income of the Trust for a taxable year in excess of the unitrust amount shall be added to principal. The Trustee shall have discretion to make distributions in cash or in kind, valued at fair market value on the date of distribution.

2.3 Proration. For any short taxable year of the Trust, the Trustee shall prorate the unitrust amount on a daily basis. In the taxable year of the Trust in which the Trust terminates, the unitrust amount shall be prorated to the date of termination.

2.4 Deferral of Payment. The obligation of the Trustee to pay the unitrust amount shall commence with the date of funding of the Trust and shall be payable from income and, to the extent income is insufficient, from principal. In no event shall the aggregate annual distribution exceed the net fair market value of Trust assets.

ARTICLE III - TRUST TERM AND REMAINDER INTEREST

3.1 Trust Term. The Trust shall continue for a term of for the life of the Donor (the "Trust Term"), unless sooner terminated in accordance with the provisions of this Agreement or by operation of law.

3.2 Remainder Beneficiary. Upon the expiration of the Trust Term, the Trustee shall distribute all of the then-remaining principal and income of the Trust (the "Remainder Interest") to Howard University Endowment Fund (the "Charitable Remainder Beneficiary"), an organization described in each of Sections 170(b)(1)(A), 170(c), 2055(a), and 2522(a) of the Code.

3.3 Alternative Charitable Beneficiary. If the Charitable Remainder Beneficiary is not an organization described in each of Sections 170(b)(1)(A), 170(c), 2055(a), and 2522(a) of the Code at the time of distribution, the Trustee shall distribute the Remainder Interest to one or more organizations so described as the Trustee shall select, in its sole discretion.

3.4 Early Termination. If the net fair market value of the Trust assets falls below \$50,000, the Trustee may, in its sole discretion, terminate the Trust and distribute the remaining assets to the Charitable Remainder Beneficiary.

ARTICLE IV - INVESTMENT OF TRUST ASSETS

4.1 Investment Powers. The Trustee shall have the power to invest and reinvest the Trust property in any form of property or investment, including but not limited to stocks, bonds, mutual funds, real estate, partnership interests, and alternative investments, without being limited by any statute or rule of law regarding investments by fiduciaries. The Trustee shall manage the initial corpus of \$3,750,000 and any subsequent contributions with the objective of maintaining the purchasing power of the Trust while generating sufficient income to satisfy the 4.8% annual distribution requirement.

4.2 Standard of Care. The Trustee shall invest and manage the Trust assets as a prudent investor would, considering the purposes, terms, distribution requirements, and other circumstances of the Trust. The Trustee shall exercise reasonable care, skill, and caution in making and managing investments.

4.3 Prohibited Transactions. Notwithstanding any other provision of this Agreement, the Trustee shall not engage in any act of self-dealing as defined in Section 4941(d) of the Code, retain any excess business holdings as defined in Section 4943(c), make any investments that jeopardize the charitable purpose of the Trust as defined in Section 4944, or make any taxable expenditures as defined in Section 4945(d) of the Code.

ARTICLE V - TRUSTEE POWERS AND COMPENSATION

5.1 Administrative Powers. The Trustee shall have all powers necessary or appropriate to carry out the purposes of this Trust, including without limitation the power to: (a) sell, exchange, lease, or otherwise dispose of Trust assets at public or private sale; (b) borrow money and encumber Trust property as security therefor; (c) compromise, contest, arbitrate, or settle claims in favor of or against the Trust; (d) employ investment advisors, custodians, agents, attorneys, and accountants and delegate to them such powers as the Trustee deems appropriate; (e) execute all instruments and documents necessary or convenient to administer the Trust; (f) make elections and allocations for tax purposes; and (g) do all other acts necessary for the proper management, investment, and distribution of the Trust estate.

5.2 Annual Trustee Fee. As compensation for services rendered in connection with the administration of this Trust, the Trustee shall be entitled to an annual fee equal to 0.80% of the net fair market value of the Trust assets, calculated as of the first business day of each calendar year (the "Fee Calculation Date"). Based on the initial Trust corpus of \$3,750,000, the estimated initial annual fee shall be \$30,000. This fee shall be payable quarterly in arrears and shall be deducted from Trust income prior to the calculation of the unitrust distribution amount. The Trustee reserves the right to adjust this fee upon sixty (60) days written notice to the Income Beneficiary, provided that such adjustment shall not exceed an increase of 0.25% in any single calendar year.

5.3 Reimbursement of Expenses. In addition to the annual fee described in Section 5.2, the Trustee shall be reimbursed from the Trust for all reasonable out-of-pocket expenses incurred in connection with the administration of the Trust, including but not limited to legal fees, accounting fees, tax preparation costs, custodial charges, brokerage commissions, and costs of litigation. Such expenses shall be charged against Trust income or, if income is insufficient, against Trust principal.

5.4 Successor Trustee. In the event the Trustee resigns or is unable to serve, the Trustee shall appoint a successor trustee that is an organization described in Section 501(c)(3) of the Code. If no appointment is made within ninety (90) days, the Income Beneficiary may petition the appropriate court to appoint a qualified successor.

5.5 Limitation of Liability. The Trustee shall not be liable for any loss or depreciation in value of the Trust assets resulting from the exercise of its investment discretion in good faith, nor for the acts or omissions of any agent, custodian, or advisor employed by the Trustee in good faith. The Trustee shall be liable only for its own willful misconduct or gross negligence.

ARTICLE VI - GENERAL PROVISIONS

6.1 Governing Law. This Agreement shall be governed by and construed in accordance with the laws of the State of Virginia, without regard to its conflict of laws principles.

6.2 Spendthrift Provision. No interest in the income or principal of this Trust shall be subject to the claims of any creditor of any beneficiary, to any court order or judgment, or to voluntary or involuntary transfer or assignment by any beneficiary.

6.3 Severability. If any provision of this Agreement is determined to be invalid or unenforceable, such determination shall not affect the validity or enforceability of the remaining provisions hereof.

6.4 Entire Agreement. This Agreement constitutes the entire agreement between the parties with respect to the subject matter hereof and supersedes all prior negotiations, representations, warranties, and understandings with respect thereto.

6.5 Notices. All notices required or permitted under this Agreement shall be in writing and shall be deemed given when delivered personally, sent by certified mail (return receipt requested), or sent by overnight courier to the parties at their respective addresses on file with the Trustee.

IN WITNESS WHEREOF, the parties have executed this Agreement as of the date first written above.

Patricia D. Whitfield, Donor

National Christian Charitable Foundation, Inc.
Trustee

STATE OF VIRGINIA
COUNTY OF _____

On this ____ day of _____, 20__, before me, a Notary Public in and for the State of Virginia, personally appeared the above-named Patricia D. Whitfield, known to me (or proved to me on the basis of satisfactory evidence) to be the person whose name is subscribed to the within instrument and acknowledged to me that they executed the same in their authorized capacity, and that by their signature on the instrument, the person, or the entity upon behalf of which the person acted, executed the instrument.

Notary Public
My Commission Expires: _____